V 1.0.0

(D40) TCORF Non-Compliance Handling Protocols

Standard Operating Procedures for Remediation Requests

Referenced by: D31 TCORF Framework (Rights Catalogue)

Operational Note: Users must strictly review the Disclaimer (Document 53) [REF:D53] regarding operational risk assessments and liability limitations prior to deployment. TCORF standardizes requests and audits; enforceability depends on local reality. The User assumes full responsibility for assessing the safety of the operational environment.

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1. Purpose (What this document is)

This document defines a standardized request and documentation process for Owners (Citizens) who want to report and challenge a violation of a TCORF Right (D31).
TCORF is not a court and does not enforce outcomes.
TCORF provides a repeatable format for:

- describing violations clearly,
- attaching objective evidence,
- requesting standardized remedies,
- and enabling cumulative signals at scale ("agreement in advance without coordination").

The purpose is awareness, traceability, and pressure through comparability, even if enforcement is absent.

2. Operational Disclaimer

This document provides standardized request procedures for documentation and governance QA. It is not legal advice, not a guarantee of enforceability, and not a replacement for courts, police, or emergency services. Users are solely responsible for assessing operational risk, including the risk of retaliation, aggressive non-compliance, or legal exposure resulting from public publication. In high-risk environments, users should begin with a Silent Educational Phase ("Shadow Audit") before initiating any contact or public filing. Refer to Document 53 (Disclaimer [REF:D53]) and Document 51 (Terms of Use [REF:D51]) before deployment.
Wherever this framework says "must", "shall", "required", "obligated" or "not acceptable", it states the benchmark the Organization's conduct is audited against. It creates no obligation, and a miss is recorded as a Finding, not enforced.

3. Active Audit + Real-World Interaction

Active Audit requests under TCORF must maintain a **clear distinction between procedural tooling and source of authority.**

TCORF does not constitute a legal system, nor does it independently confer enforceable rights. Accordingly, an Active Audit request **must not assert entitlement on the basis that a TCORF-defined right has been violated**, unless such a right is independently recognized by the external system involved.

All Active Audit requests must instead be framed around externally grounded interests, including but not limited to:

- Ownership, custodial, or stakeholder interests
- Legal, contractual, regulatory, or policy-based obligations
- Civic or administrative duties with identifiable impact
- Procedural failures producing tangible harm or risk

The TCORF Framework functions as a neutral procedural interface that allows such issues to be:

- Formally documented
- Transparently communicated
- Tracked through defined resolution paths

This requirement preserves the legitimacy, accuracy, and interoperability of TCORF-based claims and prevents mischaracterization of TCORF as a source of binding authority.

4. Key Definitions

- Owner / Citizen (Owner): a member of the co-owned organization who may file a request.
- Organization: the co-owned entity and its offices.
- Agent: any employee, contractor, delegated person, office-holder (elected or appointed), or outsourced actor acting for the organization.

- Request — either (a) a disclosure or information request made under a Right in D31, or (b) a demand for remediation under this SOP. Both are subject to the intake, receipt, routing and preservation rules below.
- Finding — a recorded gap between a Right in D31 and what the Organization did or published. Where the Right carries a D32 extension, the gap is measured against that specification; where it does not, the Right's own text is the test. Records a state; triggers nothing.
- Remediation Trigger — the condition under which an Owner may file a D40 request for a given Right.
- Non-Compliance — what the Organization does or publishes falls short of a Right in D31. A Finding is the recorded gap that shows it.
- Request Not Handled — the Organization failed to take in, record, route, examine, process or carry out a request. The cases are listed in §18.

5. Who May Send a Request

A. Default rule

Only individual Owners may file requests (no coordination required).

B. Filing on behalf of others (exception)

An Owner may file on behalf of another person only in special cases where that person is unable to file (e.g., missing, unlawfully detained, dead, permanently unconscious).

6. Owner Chooses the Submission Method (Digital is optional)

If a complaint portal or platform exists, the Owner is not required to use it.

Reasons:

- the Owner may be cut off (no internet, hardware, software, ID, transport),
- digital systems can be inaccessible or restrictive,
- digital systems can fail or become selectively unavailable.

Paper submission is always valid.

TCORF treats paper trail as a protected option, not an exception.

7. Minimum Required Intake Availability

Every organization must provide at least:

One postal intake address (reachable by mail) for TCORF requests.

If no official complaint postal address exists, is not well-known, or is not accessible, intake must be possible via any reachable public-facing point of contact, including but not limited to:

- a local authority office,
- police station,
- post office,
- school administration,
- any official front desk capable of forwarding internally.

“No intake point exists” is not acceptable.

8. Mandatory Intake Rule (No “Wrong Office” Defense)

An organization may claim it is not the responsible processing office. This is not a valid reason to reject intake.

Minimum required behavior:

1. Accept intake (paper or digital).
2. Issue a receipt / request number (proof of registration).
3. Forward internally to the responsible unit without delay.
4. Preserve the request content (no deletion, alteration, hiding, “lost in transit”).

Rejecting intake, refusing registration, or refusing a receipt means the request was not handled, and may be treated as a separate non-compliance event.

An organization handling a request may consult and retain the framework documentation as necessary to understand and respond to it. This requires no license (Document 52 [REF:D52]).

9. Manual Intake Mode (Always Available Fallback)

Manual Intake Mode exists to ensure that requests can always be filed, even when:

- no valid/well-known complaint postal address exists

In Manual Intake Mode, the receiving office must:

1. Accept the request immediately (paper or any available channel).
2. Issue a manual receipt containing:
    - date/time,
    - receiving office/location,
    - signature or stamp where possible,
    - and a temporary reference number (or written acknowledgment).
3. Forward internally to the responsible unit without delay.
4. Register later when possible, without altering the content.

Manual mode is a protected baseline.

It is not optional, and it is not a “downtime exception.”

10. Request Handling Capacity Is Not a Defense

Organizations may claim they cannot process requests due to lack of staff, budget, software, or capacity.

TCORF rejects “capacity” as a defense for unprocessed core-rights violations.

Owners have the right to a rapid, standardized request procedure for core rights.

If violations exist, it is the organization’s responsibility to scale intake and processing to match real demand.

If the organization cannot process high volumes, that indicates the organization lacks a functioning complaint and QA capability — which is itself a governance failure.

TCORF supports scalability through:

- strict request formatting,
- one-violation-per-request structure,
- and bundling of materially identical requests.

11. How to Write a Request (Objective Evidence Standard)

A valid request must meet these minimum standards:

- Max 500 words
- One request = one specific Right violation (one case)
- Must include:
    1. Right number + Right title (from D31)
    2. What happened (facts only)
    3. Where/when (dates, times, locations)
    4. Which office / role (as precisely as possible)
    5. Evidence attached or referenced (documents, videos, photos, witness names, timestamps)
    6. Requested outcomes (from the Outcome Menu below)

Evidence may be attached without additional text.

The request body must remain short, auditable, and focused.

12. Acknowledgment Targets (Receipts)

Organizations must acknowledge and register requests as follows:

- Digital acknowledgment target: within 48 hours (where available)
- Manual / postal acknowledgment target: within 168 hours (7 days)

For manual/postal requests, acknowledgment deadlines start when the request is received by any valid intake point (including fallback locations described in Sections 6 and 8).

Refusal to acknowledge, register, forward, or issue a receipt may qualify as a request not handled, especially when repeated.

13. Timestamp of Notice (Owner-controlled proof)

After dispatching a request, the Owner does not have to wait for confirmation.

The Owner may immediately document and/or publicize the filing as their Timestamp of Notice, using proof such as:

- postal proof of delivery / registered mail,
- photos/video of submission,
- witness confirmation,
- email records,
- portal submission confirmation,
- or any comparable evidence.

Safety note: publicizing can provide protection through visibility in some environments and increase risk in others. The Owner decides what is safe.

14. Bundling Rules (Batch Processing)

Bundling is allowed to reduce processing cost when many requests are materially identical.

Bundling requirements:

- No information loss: every underlying request must remain accessible.
- Material identity: same Right, same violation pattern, same requested outcomes, and the same relevant roles/offices (as applicable).
- QA threshold: bundling allowed only if error rate stays below 1%.
- If error rate exceeds 1%, bundling is suspended for 1 month.

Bundling is a scalability tool, not a way to erase details.

15. Outcome Menu, A1-A3, B1-B2, C1-C3, D1-D2, E (Standardized Administrative Requests)

These are HR / operational outcomes, not criminal sentencing.

They are written as standardized options so many Owners can independently request the same thing without coordination.

A) Stop / Correct / Undo

- A1 — Cessation: stop an active violation immediately
- A2 — Correction: provide missing information, restore access, redo a defective process. A2 is the default request where the failure is a missing, incomplete or defective publication rather than an act against an Owner.
- A3 — Annulment request: treat a specific action/procedure as invalid because of non-compliance

B) Termination Requests (HR)

- B1 — Termination with severance (standard payout / contractual minimum)
- B2 — Termination without severance (breach of trust, request not handled, severe abuse cases)

C) Employment / Mandate Exclusion (Eligibility Restriction)

- C1 — 4-year exclusion (default serious non-compliance / deterrence where requests are not handled)
- C2 — 10-year exclusion (high severity rights)
- C3 — Lifetime exclusion (extreme rights violations such as persecution, forced labor, camps, murder)

D) Financial Accountability

- D1 — Restitution: compensation to the Owner for what was taken or lost. The request lists each documented loss — assets, property, income, and costs caused by the action — valued as at the date of the loss, and asks for the return of identifiable assets before asking for payment. D40 sets no ceiling and no scale; the documented loss is the amount. D1 is addressed to the Organization. Where the Right that triggered the request lists D1 among its serious-case outcomes in D31, D1 is also stated against each step recorded under Section 22.
- D2 — Clawback / reimbursement of unauthorized gains or spending

E) Cooling-Off Period Without Immunity

A standardized request that a leader must serve a continuous period without immunity, as specified by the relevant Right in D31.

16. Accountability Attachment Rule (Minimum Chain)

For any request that alleges a violation or Request Not Handled [REF:D40 §18], the Organization must attach administrative accountability review to **at least three roles** where applicable:

1. **Primary actor** (the Agent who executed the action)
2. **Direct supervisor** (line manager responsible for oversight)
3. **Department head / unit head** (senior responsible leader)

Organization's failure to identify and route potential accountability to the required chain may qualify as a request not handled.

Where the action passed through more than one of these roles, the record is built under Section 22.

17. Processing Targets (Service Level Targets for Audit)

Deadlines are targets used for audit, comparability, and accountability:

- Emergency (life/liberty threat): 48 hours
- Current issues: 30 days
- Past 12 months: 45 days
- Past 4 years: 90 days
- Past 5–25 years: 180 days

Execution target. Where the Organization accepts a requested outcome, the date it is carried out is recorded against the date it was accepted. Target: 30 days, or without delay where the request was handled under the emergency target. A request that was processed on time but has not been carried out is recorded as open, with the time elapsed.

If a Right defines specific deadlines or protocols, those override D40's general service targets.

18. Request Not Handled

A request is not handled if any of these happens:

- **Not accepted** — the office refused to take it.
- **No receipt** — taken, but no reference number or written record given in the time set in §12.
- **Not passed on** — never routed to the responsible unit.
- **Closed without review** — a reply came back, but nothing in it shows the request was read.
- **Not processed in time** — past the target in §17.
- **Not carried out** — an outcome was accepted, but the action never followed (§17).
- **Changed or lost** — altered, hidden or deleted.

A refusal is not a failure. A refusal that shows no sign the request was examined is.

Each is a separate reason for a request of its own, because a system that cannot receive and process requests is itself failing.

Retaliation against a requester is not covered here. That is conduct against a person, and the Rights catalogue covers it directly.

19. Transparency & Logs (Desirable Implementation — Safety First)

TCORF supports tracking through logs to identify patterns.

Request Log ("Shadow Log") — recommended

A log of requests with long retention helps identify repeated patterns and support audits.

Retention: 30 years, so that a pattern outlasts the people who produced it. Corrections are added as dated revision entries and never replace the original entry.

Publication — optional and context-dependent

In stable environments, publication increases accountability.

In high-risk environments, publication can increase danger.

Any publication system should support:

- delayed publication,
- anonymization,
- role/office-based identification when possible,
- private escrow storage,
- and export access for independent analysis.

Exclusion lists — optional and environment-dependent

Eligibility lists can prevent rehiring of excluded individuals in stable environments.

In unstable environments, they may increase risk and misuse.

TCORF therefore treats eligibility lists as optional, not mandatory.

20. Integrity Rule (False Accusations and Misuse)

TCORF is designed for good-faith, evidence-backed requests.

Knowingly false claims, harassment, or abuse of the process:

- damages the credibility of the framework,
- may expose the requester to legal and operational risk,
- and undermines the purpose of standardized oversight.

Owners should publish carefully and stick to objective evidence.

21. Ticketing Principle (Why this is a system)

Each request is a trackable incident.

The organization's inability to process incidents at volume is not the citizen's burden.

It is an organizational failure that must be corrected.

22. Accountability Across the Chain

Section 16 routes an accountability review to a minimum of three roles. This section states how the record is built where an action passed through more than one of them.

A. An instruction is not an answer.

A finding is recorded at every step between the decision and the act: the office that decided, every office that passed the instruction on, and the Agent who carried it out. Passing an instruction on is itself an act at that step. The three roles in Section 16 are a minimum. Where the chain has more steps, the record follows all of them.

The instruction is recorded as part of the finding, together with the office that issued it. It does not move the finding away from the person who carried the action out. The same rule applies one level higher in D41 Section 1: the statute, decree or order relied on is recorded as part of the finding, not accepted as an answer to it.

Why every step. If carrying out an instruction removed the finding from the person who carried it out, nothing would be recorded at the point where the action reaches an Owner.

Each step could then answer by naming the step above it, and the chain would end with no one in it.

This clause records what was done and on whose instruction. It places no duty on any Agent and asks no one to refuse an instruction.

Each step is recorded on the evidence for that step. Where the evidence does not reach a step, the step is recorded as unknown, not inferred. Section 20 applies to the chain as it applies to the request.

B. A vacancy does not break the chain.

Where a role in the chain is unfilled, unnamed or unreachable, the chain continues to the next level, and the vacancy is recorded with it. Where no compliance function has been appointed at all, that absence is recorded at the most senior role the chain reaches. Leaving a post unfilled is not an answer to a request.

C. Outcomes are stated per step, and matched to the step.

Where a request records a chain, the outcomes requested under Section 15 from groups B, C and D are stated for each step rather than for the Organization alone. Group A is addressed to the Organization in every case.

They are not the same outcome at every step. Each step carries what that step did: deciding, instructing, passing on, or carrying out. The Right that triggered the request sets which outcomes are available at all, in its entry in D31; this section only distributes them.

A request that asks for the same outcome at every step has not been written against the chain. It has been written against a list of names.

Why in advance. An Agent at the executing step can read, before acting, what the record will contain and whose name it will carry. This is an argument, not a documented mechanism: in the clearest historical cases personal accountability was established afterwards, and deterred nothing while those events ran. What changes here is that the standard, and the naming of individual steps, exist before the act rather than after it.

Recovery often fails. The request still establishes what was owed, to whom, and by which steps, in a form that survives.

Safety. This section asks an Owner to write down names. Where the Organization is High-Coercion, the record is made privately and no request is filed [REF:D53, Section 4].